

23PR00314 Conservatorship of Benjamin Leitcher

County: santa-barbara

Division: Conservatorship

Department: 3 SM-Cook

Hearing date: 2023-09-27

Motion: Petition: Appoint Conservator of Person (UPDATED 9/27/23)

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Tentative Ruling: Conservatorship of Benjamin Leitcher

Case Number

23PR00314

Case Type

Conservatorship

Hearing Date / Time

Wed, 09/27/2023 - 08:30

Nature of Proceedings

Petition: Appoint Conservator of Person (UPDATED 9/27/23)

Tentative Ruling

Probate Notes:

Appearances required.

The following issues have not been resolved and must be corrected before the Court has authority to grant the petition:

Proof of Personal Service of Summons. There is no Proof of Service showing the Citation was personally served on the proposed conservatee. The Court has no jurisdiction over the proposed conservatee until this is filed. In a conservatorship proceeding, jurisdiction is obtained through personal service of a citation and a copy of the petition for conservatorship upon the proposed conservatee, 15 days before the hearing. (Prob. Code, § 1824; Conservatorship of Jones (1986) 188 CA3d 306, 309.)

Proposed Order Appointing Conservator (GC-340). "Proposed orders or judgments shall be submitted on or before noon at least five court days prior to the hearing. Failure to submit a timely proposed order may delay the hearing or entry of the order." (Local Rule 1724.)

The proposed conservatee is expected to attend the hearing. (Prob. Code, § 1825.)

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 160 047 8568

Passcode: 9258167

Judges

Judge Timothy Staffel

Dept. 3 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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